



CHAPTER 61

An Act to extinguish rights of common and other rights, in so far as any such rights subsist in or over certain land in the parish of Winfrith Newburgh in the county of Dorset; to provide for determining the nature of the said rights, in so far as they subsist in or over that land, and the persons entitled thereto, and to provide for compensation in respect of the extinguishment thereof; and for purposes connected with the matters aforesaid. [31st July, 1957]

WHEREAS for the purposes of their functions under the Atomic Energy Authority Act, 1954, and other enactments the United Kingdom Atomic Energy Authority (in this Act referred to as "the Authority") are desirous of acquiring certain lands in the parish of Winfrith Newburgh in the county of Dorset, and of constructing buildings and other works on those lands:

And whereas the said lands include part of a common or reputed common known as Winfrith Heath and also include a common or reputed common known as Knighton Heath and part of another common or reputed common known as Burton Heath, but it is not known what rights of common or similar rights (if any) now subsist in respect thereof:

And whereas for enabling the said buildings and works to be constructed it is expedient that all such rights as aforesaid, in so far as they subsist and affect the said lands, should be extinguished by the authority of Parliament:

And whereas it is expedient that provision should be made for determining the nature and extent of the said rights, in so far as

they subsist and affect the said lands, for determining the compensation to be paid in respect of the extinguishment of any such rights, and for the payment of any compensation so determined:

And whereas in connection with the Bill for this Act there have been deposited with the clerk of the administrative county of Dorset plans (in this Act referred to as "the deposited plans") showing the lands in respect of which such rights as aforesaid are to be extinguished by virtue of this Act, together with a book of reference to the deposited plans containing the names of the owners or reputed owners, lessees or reputed lessees, and occupiers, of those lands:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extinguish-
ment of
rights of
common.

1.—(1) Subject to the provisions of this section, all such rights of common or similar rights (if any) as immediately before the passing of this Act subsisted in or over any part of the land to which this Act applies are hereby extinguished.

(2) As from the passing of this Act—

- (a) no part of the land to which this Act applies shall be taken, for the purposes of any enactment, to be or to form part of a common, open space or fuel or field garden allotment; and
- (b) so much of any enactment as (apart from this Act) would require any of that land to remain open and uninclosed shall cease to apply to that land.

(3) The land to which this Act applies is the land delineated on the deposited plans and shown thereon as the land in respect of which rights are to be extinguished by this Act.

(4) The rights extinguished by subsection (1) of this section shall include all rights which would have been extinguished by virtue of section one hundred and seven of the Lands Clauses Consolidation Act, 1845, if the following circumstances had existed immediately before the passing of this Act, that is to say, if—

- (a) the Authority had been duly authorised, in pursuance of subsection (1) of section five of the Atomic Energy Authority Act, 1954, and the enactments incorporated therewith, to purchase compulsorily the land to which this Act applies;
- (b) all such steps had been taken as in accordance with any enactment would have been required to be taken for

enabling the Authority to execute, in respect of the land to which this Act applies, a deed poll under the said section one hundred and seven for the purpose of effecting the vesting of that land in the Authority as mentioned in that section; and

- (c) the Authority had duly executed such a deed poll in respect of that land and that deed had taken effect in accordance with that section,

but shall not include any rights which would not have been extinguished by virtue of the said section one hundred and seven if those circumstances had then existed.

(5) Notwithstanding the preceding provisions of this section, nothing in those provisions shall affect the amount of the compensation which, in the event of the compulsory acquisition of an interest in any of the land to which this Act applies, would be payable in respect of that interest, and any such amount shall be assessed as if this Act had not been passed.

2.—(1) The Lord Chancellor shall appoint a valuer or other fit person (hereafter in this Act referred to as “the valuer”) for the purposes of this section.

Determination
of rights and
provision for
compensation.

(2) The valuer shall first determine—

- (a) whether, immediately before the passing of this Act, any such rights as are mentioned in subsection (1) of the preceding section subsisted in or over any part of the land to which this Act applies, and have been extinguished by the operation of that subsection, and
- (b) if any such rights so subsisted and have been so extinguished, what was the nature of those rights, and over what parts of the land to which this Act applies they were exercisable respectively,

so however that for the purposes of this subsection the valuer shall not be required to determine the persons entitled to any such rights or the lands to which any such rights were appurtenant or appendant or otherwise belonged:

Provided that if it appears to the valuer that the questions to be determined by him under this subsection could most conveniently be determined by way of two or more separate decisions, relating either to different rights or to different parts of the land to which this Act applies, the valuer may determine those questions accordingly.

(3) The valuer shall publish notice of every decision made by him under the last preceding subsection in such manner as he may consider appropriate for making it known to persons who may be affected thereby.

(4) Where the valuer has published notice of a decision made by him under subsection (2) of this section, then at any time not later than three months after the first publication of that notice the Authority, or any person who claims to have been entitled to any rights to which the decision relates and wishes to dispute the valuer's decision, may give notice in writing to the valuer requiring him to refer the decision to the Lands Tribunal; and, if any such notice is given to the valuer in accordance with this subsection, he shall refer the decision to the Lands Tribunal, and on that reference—

- (a) the valuer, the Authority and every person claiming to have been entitled to any rights to which the valuer's decision relates shall be entitled to be heard by the Tribunal, and
- (b) the Tribunal shall either confirm or vary the decision of the valuer and shall give notice of their decision in such manner as the Tribunal may consider appropriate for making it known to persons who may be affected thereby.

(5) If, in accordance with the preceding provisions of this section, it is determined that any such rights subsisted and have been extinguished as mentioned in paragraph (a) of subsection (2) of this section, then (subject to the next following section) at any time after—

- (a) the valuer has published notice of a decision under subsection (2) of this section which relates to those rights, and
- (b) any proceedings before the Lands Tribunal in respect of that decision, or any proceedings arising from any such proceedings, have been finally determined, or the time for bringing such proceedings has expired,

any person who claims that, immediately before the passing of this Act, he, or a person from whom he derives title whether directly or indirectly, was entitled to exercise such a right which has been so extinguished, may give notice in writing to the valuer claiming compensation for the extinguishment of that right.

(6) The valuer shall consider any claim made under the last preceding subsection and, if he determines that the claim is well-founded, shall determine the compensation to be paid to the claimant in respect of the extinguishment of the right, and shall give notice of his decision to the person making the claim and to the Authority.

(7) At any time not later than three months after the valuer has given notice of his decision on a claim under subsection (5) of this section, the person making the claim, if he wishes to dispute that decision, or the Authority, if they wish to dispute it, may give notice in writing to the valuer requiring him to refer

the claim to the Lands Tribunal, and the valuer shall refer it to the Tribunal accordingly; and on any reference to the Lands Tribunal under this subsection—

- (a) the claimant, the Authority and the valuer shall be entitled to be heard by the Tribunal, and
- (b) the Tribunal shall either confirm or vary the decision of the valuer and shall give notice of their decision to the claimant, to the Authority and to the valuer.

(8) Where in accordance with the provisions of subsections (5) to (7) of this section it is determined that any compensation is payable to a claimant, the amount of the compensation shall be paid to him by the Authority, together with interest thereon, from the date of the passing of this Act, at the rate for the time being in force under subsection (2) of section fifty-seven of the Town and Country Planning Act, 1947.

3.—(1) For the purposes of the performance of his functions under the last preceding section, the valuer may publish such notices, hold such inquiries and convene such meetings as he may think fit, and shall have power to hear, receive and examine evidence on oath, and, subject to the provisions of this Act, may regulate his procedure thereunder as he may determine. Supplementary provisions.

(2) Without prejudice to the generality of the preceding subsection, the valuer may fix a period within which notices of claims under subsection (5) of the last preceding section may be given to the valuer, and shall publish notice of any period so fixed in such manner as he may consider appropriate for making it known to persons who may be affected thereby:

Provided that the period fixed by a notice under this subsection shall be a period ending—

- (a) not less than six weeks after the date on which the notice under this subsection is first published, and
- (b) not less than six weeks after the earliest date on which, in accordance with subsection (5) of the last preceding section, persons are entitled to give notice under that subsection of claims in respect of which the period is fixed.

(3) Where the valuer has published a notice fixing a period in accordance with the last preceding subsection, he may disregard any claims in respect of which the period is fixed if notice of them is not duly given to him within that period.

(4) If it appears to the valuer that any claim under subsection (5) of the last preceding section raises a question of title on which the opinion of conveyancing counsel would be of assistance in determining the claim, the valuer may refer that question to one of the conveyancing counsel of the High Court for his opinion

(5) If, at any time after the appointment of the valuer and before he has completed the performance of his functions under this Act,—

- (a) the valuer dies, or
- (b) the Lord Chancellor is satisfied that the valuer, by reason of illness, absence or other cause, has become incapable of performing those functions,

the Lord Chancellor, in a case falling within paragraph (b) of this subsection, shall terminate the valuer's appointment under this Act, and, in either case, shall appoint another valuer or other fit person to act in his place; and, in relation to any period after that appointment takes effect, any reference in this Act to the valuer shall be construed as a reference to the person so appointed.

(6) The provisions contained in the Schedule to this Act shall have effect with respect to proceedings on references to the Lands Tribunal under this Act.

(7) The Authority shall pay—

- (a) all costs and expenses incurred by the valuer in pursuance of this Act, including the valuer's costs and expenses of or incidental to any proceedings under this Act to which the valuer is a party except in so far as any such costs or expenses are ordered by any tribunal or court to be paid by another party to the proceedings and are so paid in pursuance of the order;
- (b) the remuneration of the valuer as determined by the Lord Chancellor.

(8) The Authority shall also pay all costs and expenses incurred by any person who claims to have been entitled to any rights extinguished by section one of this Act, or to derive title, directly or indirectly, from a person so entitled, in so far as any such costs or expenses are certified by the valuer to have been reasonably incurred by that person for the purposes of the determination by the valuer of any question which the valuer is required to determine under the last preceding section; and in determining under this subsection whether any costs or expenses incurred by any person were reasonably incurred for those purposes the valuer—

- (a) shall have regard to the nature of the claim and the evidence produced in support thereof, and to the scale of the costs and expenses in question in relation to the nature of the claim and the evidence so produced, but

- (b) shall not disallow any costs or expenses by reason only that the matter in question was determined adversely to the claimant, whether by the valuer or by the Lands Tribunal:

Provided that this subsection shall not apply to costs or expenses of or incidental to any proceedings before the Lands Tribunal, and shall not affect any power of that Tribunal with respect to any such costs or expenses.

4. This Act may be cited as the Winfrith Heath Act, 1957. Short title.

Section 3.

SCHEDULE

REFERENCES TO LANDS TRIBUNAL

1. Any reference to the Lands Tribunal under this Act shall be made by means of a notice sent by the valuer to the registrar of the Tribunal (in this Schedule referred to as "the registrar"); and the registrar shall enter particulars of every such notice in the Register of References.

2. Every such notice shall be accompanied by a copy of—

- (a) the decision of the valuer to which the reference relates; and
- (b) the notice given to the valuer requiring him to refer the decision or claim in question to the Tribunal.

3.—(1) The provisions of this paragraph shall apply where a reference is made under subsection (4) of section two of this Act.

(2) The Lands Tribunal shall publish notice of the reference in such manner as the Tribunal may consider appropriate for making it known to persons who may be entitled to be heard thereon; and every such notice shall state the number of the reference, which shall thereafter constitute the title of the proceedings.

(3) Any person who is entitled to be heard by the Tribunal on the reference, and who intends to appear at the hearing, shall give notice in writing to the registrar of his intention to do so not later than twenty-one days after the first publication of the notice under the last preceding sub-paragraph, stating—

- (a) whether he intends to appear separately or jointly with some other person;
- (b) the grounds on which he intends to rely;
- (c) whether he does or does not propose to call an expert witness;
- (d) an address at which documents may be served upon him.

(4) The registrar shall, on being requested to do so by any person who has given notice of intention to appear, or who satisfies the registrar that he is a person qualified to give such a notice, supply him with copies of the notice of reference and of any relevant notice of intention to appear received by the registrar from any other person.

(5) For the avoidance of doubt, it is hereby declared that the preceding provisions of this paragraph apply in relation to the valuer and to the Authority as they apply in relation to other persons entitled to be heard on a reference under subsection (4) of section two of this Act.

4. Upon receipt of notice of a reference under subsection (7) of section two of this Act, the registrar shall forthwith send a copy of the notice, and of the documents sent therewith, to the Authority and to the person to whose claim the reference relates, and shall inform them and the valuer of the number of the reference, which shall thereafter constitute the title of the proceedings.

5. Subject to the preceding provisions of this Schedule—

SCH.—cont.

- (a) all the provisions of the Lands Tribunal Act, 1949, and
- (b) except in so far as may be otherwise provided in any rules made after the passing of this Act, all the provisions (including provisions as to fees) of any rules for the time being in force under that Act,

shall apply in relation to proceedings on any reference to the Tribunal under this Act as they apply in relation to proceedings of the Tribunal on any question (not being an appeal against a determination) which, under any enactment other than the said Act of 1949, is in default of agreement to be determined by the Tribunal.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Atomic Energy Authority Act, 1954 ...	2 & 3 Eliz. 2. c. 32.

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